IN THE CIRCUIT COURT OF JUSTICE ATASOMANSO, ASHANTI REGION OF GHANA HELD ON THE 31ST DAY OF JULY 2025, BEFORE HER HONOUR LAWRENCIA A.A.D. GYAMFI (Ms.), CIRCUIT JUDGE.

SUIT NO. D1/01/23

THE REPUBLIC

VS.

KWADWO FORDJOUR @ LASANA

JUDGMENT:

i. Charge Sheet

[1] The accused person herein has been charged with two counts of Assault and Robbery, contrary to Sections 84 and 149 of the Criminal and Other Offences Act 1960, Act 29.

[2] The particulars of offence of counts one and two are that on 7th December 2022, at about 9:50 p.m. at Boadi, Kumasi, the accused person unlawfully assaulted, attacked and

robbed one Frimpomaa Akua of her TECHNO CAMON 17 valued at Nine Hundred and Fifty Ghana Cedis (GHS 950). The accused person pleaded not guilty to these charges, hence, the current trial.

[3] The facts presented by the Prosecution are that the Complainant is a Laboratory Technician who lives in Boadi, and the Accused person is also a Tiler who lives in Ayeduase, a suburb of Kumasi.

[4] On 7th December 2022, at approximately 9:50 p.m., the Complainant was on her way home from work with her younger sister when the accused emerged from behind and slapped her across the face. The accused then ordered the complainant to surrender everything in her possession and threatened to kill her younger sister when she tried to run. The accused then forcibly took the complainant's Tecno Camon 17 mobile phone, valued at GHS 950.00, from her pocket.

[5] The Complainant, in an attempt to retrieve her phone from the accused, grabbed his shirt, leading to a physical altercation between them. The accused then removed his shirt, which was being held by the Complainant, and fled, leaving the shirt in her hands.

[6] On 10th December 2022, the complainant visited the KNUST Police Station with the accused person's shirt to file a formal complaint. On 22nd June 2023, the complainant notified the police that the accused individual had been detained in a case at the Appiadu Police Station. The complainant identified the accused individual to the police, leading to his re-arrest. In his investigation cautioned statement, the accused denied the alleged offence. Following thorough investigations, he was charged with the offences enumerated on the charge sheet and subsequently brought before this Honourable Court.

ii. <u>The Law and the Evidence required; Burden of Proof/Burden of Persuasion</u>

[7] Before assessing the evidence before the Court, I shall briefly reiterate the burden of proof required, in light of the evidence adduced to establish the respective charges, firstly on the part of the prosecution, and then, where the burden shifts, on the accused person.

[8] The requirement of the law per Article 19 (2) (c) of the 1992 Constitution is that a person charged with a criminal offence is presumed innocent until he is proven guilty or pleads guilty. The article reads:

*"**(2) A person charged with a criminal offence shall -***

***(c) be presumed to be innocent until he is proved or has pleaded guilty**".*

[9] Therefore, the burden of proof in a criminal action rests solely with the prosecution. This being a criminal case, the Prosecution is enjoined by *Sections 11 (2), 13(1), and 22 of the Evidence Act, 1975 NRCD 323,* which stipulate that, for the prosecution to succeed in discharging that burden of proof, it must produce evidence as to facts that are essential to the guilt of the accused person in such a manner that the totality of the evidence would tell a reasonable mind that those facts exist beyond reasonable doubt. That is, the Prosecution is required to prove the ingredients of these offences beyond a reasonable doubt, to establish the guilt of the accused person, to secure his conviction.

Section 11 (2) of NRCD 323 reads:

"In a criminal action the burden of producing evidence, when it is on the prosecution as to any fact which is essential to guilt, requires the prosecution to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact <u>beyond reasonable doubt</u>."

"13 (1) In any civil or criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond <u>reasonable doubt</u>."

"22 In a criminal action a presumption operates against the accused as to a fact which is essential to guilt only if the existence of the basic facts that give rise to the presumption are found or otherwise established <u>beyond reasonable doubt,</u> and thereupon, in the case of a rebuttable presumption, the accused need only raise a reasonable doubt as to the existence of the presumed fact".

[10] In the book **<u>Essentials of the Ghana Law of Evidence</u>**, S.A. Brobbey deals extensively with the standard of proof required in criminal trials from pages 48 to 55. He states inter alia at pages 50 and 51;

"Proof beyond reasonable doubt does not mean that there should be no doubt whatsoever in the case presented by the prosecution. It means that by the end of the trial, the prosecution must prove every element of the offence or the charge (but not all the facts) and show that the defence is not reasonable……

The consideration for the principle of proof beyond reasonable doubt can be illustrated this way: If there is any element of the charge which is essential for the accused to be convicted, that element should be established to the satisfaction of the trier of facts in such a manner that a reasonable mind could conclude that the accused is guilty of the offence or that the existence of the facts constituting the charge is more probable than its non-existence".

iii. <u>What does proof beyond reasonable doubt entail?</u>

[11] The standard of proof beyond reasonable doubt was explained by Lord Denning in the case of ***Miller v. Pensions (1972)2 ALL ER 372*** as follows:

"Proof beyond reasonable doubt does not mean proof beyond a shadow of doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is strong against a man as to leave a remote possibility in his favour which can be

dismissed with the sentence of course it is possible but not the least probable, the case is proved beyond reasonable doubt, but nothing short of that will suffice".

See the cases below, which all illustrate the fact that what proof beyond reasonable doubt actually means is *'proof of the essential ingredients of the offence charged and not mathematical proof'.*

1. Tetteh v. The Republic [2001-2002] SCGLR 854

2. Dexter Johnson v. The Republic [2011] 2 SCGLR 601

3. Frimpong a.k.a Iboman v. Republic [2012] 1 SCGLR 297, just to mention a few of the relevant cases.

Also, in the case of ***Osei v. The Republic [2009]24 MLRG 203, C.A.***, it was held, confirming the long-held view that, *"proof beyond reasonable doubt does not mean proof beyond a shadow of doubt. The Court would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong as to leave only a remote possibility in his favour which can be dismissed with the sentence, 'of course it is possible, but not at all probable', the case is proved beyond reasonable doubt, but nothing short of that will suffice".*

[12] In assessing the evidence, the Court would have to apply the three-tier test to each of the elements of a crime.

In the case of ***The Republic v. Francis Ike Uyanwune [2013] 58 GMJ 162, C.A,*** it was held per His Lordship Dennis Adjei J.A that;

"The law is that the prosecution must prove all the ingredients of the offence charged in accordance with the standard burden of proof; that is to say the prosecution must establish a prima facie case and the burden of proof would be shifted to the accused person to open his defence and in so doing, he may run the risk of non-production of evidence and/ or non-persuasion to the required degree

of belief else he may be convicted of the offence. The accused must give evidence if a prima facie case is established, else he may be convicted, and if he opens his defence, the court is required to satisfy itself that the explanation of the accused is either acceptable or not. If it is acceptable, the accused should be acquitted, and if it is not acceptable, the court should probe further to see if it is reasonably probable. If it is reasonably probable, the accused should be acquitted, but if it is not, and the court is satisfied that in considering the entire evidence on record the accused is guilty of the offence, the court must convict him. This test is usually referred to as the three-tier test".

To prove their case, the Prosecution, in all, called four (4) witnesses.

iv. <u>Testimony of the First Prosecution Witness (PW1)</u>

[13] Akua Frimpomaa, the complainant and the first prosecution witness (PW1), testified that on 7th December 2022, between 9 p.m. and 9:30 p.m., she was returning home with her sister (PW2), when she was attacked by the accused at the Light Industrial Area in Boadi and robbed of her TECHNO CAMON 17.

[14] According to her, she saw the accused person suspiciously following them. Therefore, they allowed the accused to pass by them. She further narrated that when they reached a T-junction, the accused person turned left, and they turned right.

[15] On the way, PW1 claimed to have met a brother called Isaac, who asked if she knew the accused person in front of them. When she responded that she did not know the accused, Isaac advised them to be careful.

[16] After that, PW1 saw the accused person following them again. So, upon reaching a dark place, PW1 and PW2 stood where there was light due to the accused's behaviour and decided to call Isaac to accompany them home.

[17] To her surprise, the accused approached and demanded to know what she told Isaac about him (the accused), and without provocation, the accused slapped PW1 when, in response to his question, PW1 stated that she just greeted Isaac.

[18] She further stated that the accused, additionally, threatened her by saying, *"If I want him to kill me, he will kill me"*. Out of fear, she tried to retreat, but the accused advanced towards her and held her hand. At that point, PW2 attempted to run away, but the accused ordered her sister (PW2) not to move or he would kill her.

[19] Next, the accused forcibly took PW1's TECNO CAMON 17 mobile phone, valued at GHS 950.00. Correspondingly, PW1 held the shirt of the accused to retrieve her phone, but he beat her up severely, and as all that ensued, PW2 had run away.

[20] PW1 narrated that as her fight with the accused ensued and they fell on the ground, the accused hit her face repeatedly which resulted in a nose bleed. As she held on to his (the accused's) shirt firmly and refused to let go, the accused wriggled out of his shirt, left it on her hands, and took to his heels. The shirt was yellow and red in colour.

[21] Following that, PW1 said she got off the ground and chased the accused person, amidst shouting, but the accused escaped into the bush. Subsequently, people gathered at the scene of the incident. As stated by PW1, when she described the accused and showed the shirt to them, they mentioned his name as "Lasana", a resident of Ayeduase but who often went to Boadi.

[22] As claimed by PW1, she lodged a complaint at the KNUST Police with the accused person's shirt. A Police Medical Report Form was issued to her for medical treatment.

v. <u>Testimony of the Second Prosecution Witness (PW2)</u>

[23] Winifred Nyarko, the second prosecution witness (PW2), testified that on 7th December 2022, at about 9 p.m., while on her way home with PW1, she saw the accused walking behind them, but neither spoke to him.

[24] She described an encounter with a male friend named Isaac, who was by his house fetching water when they approached him. PW2 stated that Isaac asked if they recognised the accused person, who was walking behind them and had just passed. They replied that they did not recognise the accused, and then they continued on their way to their house.

[25] PW2 explained that when they had almost reached the gate of their house, the accused approached and demanded to know the discussion they had had with Isaac earlier. Then, PW1 asked the accused if he had heard them discuss him, to which he uttered that: "That is why we always kill you people". That resulted in an exchange of words between PW1 and the accused.

[26] Consequently, the accused slapped PW1 in the face in the presence of PW2, and out of fright, she took to her heels to call their friend Isaac for help. Upon PW2's return to the scene with Isaac, they did not find PW1 and the accused.

[27] Out of nowhere, PW2 saw PW1 approach, holding an attire, and claimed that the accused had robbed her of her Tecno Camon 17 mobile phone but had run away. However, she managed to seize his attire, as he had left it behind.

vi. <u>Testimony of the Third Prosecution Witness (PW3)</u>

[28] Detective Corporal Cindy Linda Cournooh is the investigator in this matter and is stationed at the KNUST District Criminal Investigation Department, Kumasi.

[29] As the third prosecution witness, D/PW/CPL Cindy Linda Cournooh testified that she came to know the complainant, Akua Frimpomaa, and the accused person, Kwadwo Fordjour, through this case.

[30] She further testified that on 10th December 2022, the complainant lodged a complaint that on 7th December 2022, at about 9:50 pm, whilst returning home after work with her little sister, the accused, Kwadwo Fordjour @ Lasana, attacked her, subjected her to severe beatings and robbed her of her Tecno Camon 17 mobile phone valued GHS 950.00.

[31] According to her, the complainant managed to remove the attire that the accused wore on the day of the incident. Consequently, the case was referred to her for investigation.

[32] As part of the investigations, PW3 obtained a statement from the complainant, PW1, and visited the scene of the crime at Boadi, where the complainant identified a section of the road near her house where the accused person attacked and subsequently robbed her of her TECNO CAMON 17 mobile phone.

[33] Thereafter, PW3 claimed that she initiated a manhunt for the arrest of the accused person, but he could not be found. However, on 22nd June 2023, the complainant visited the Police Station and informed the Police that she had information that the accused person had been arrested and detained in a different case at Appiadu Police Station.

[34] As narrated by PW3, the complainant went to the Appiadu Police station and identified the accused person to her as the one who assaulted and robbed her of her mobile phone. Consequently, PW3 re-arrested and detained the accused person.

[35] Routinely, PW3 obtained an investigation cautioned statement from the accused person, in which he denied the offence. She tendered same in evidence, which was admitted in evidence and marked Exhibit "B".

[36] In summary, D/PW/CPL Cindy Linda Cournooh indicated that PW1 submitted to the Police, a medical form/report duly endorsed by a medical officer. The medical form/report was tendered in evidence and admitted as Exhibit "A".

[37] The charged statement of the accused person was also tendered and admitted in evidence as Exhibit "C".

[38] Yet, a photograph of a t-shirt was tendered in evidence and admitted as Exhibit "D".

vii. <u>Testimony of the Fourth Prosecution Witness (PW4)</u>

[39] PW4, Andy Ahenkan Addae, testified that he had known the accused at Boadi for some time now as someone who had been robbing people of their belongings around Tech (KNUST) and its environs.

[40] He further testified that in December 2022, whilst with his friends, PW1 approached him with an orange shirt and informed them that she had been robbed of her mobile phone by a certain man who wore that shirt.

[41] PW4 maintained that after PW1 had described the said man, he knew that it was Lasana, the accused person. PW4 claimed to have seen the accused in that shirt, involved in criminal activities at Boadi and that the accused had recently been released from prison.

[42] After PW1 lodged a complaint, PW4 admitted to having assisted the Police in arresting the accused.

viii. <u>Defence of the Accused</u>

[43] During the Case Management Conference on 14th August 2023, the accused informed the Court that he intended to plead or rely on the defence of alibi, for which reason he was ordered by the court to give notice of the alibi to the Prosecution, with particulars as to the time, place and witnesses by whom it was proposed to be proven.

[44] In criminal law and procedure, if an accused puts forward an alibi as an answer to a criminal charge, he is simply saying that whoever might have committed the offence, if it was committed at all, it was not he; and to support this, he leads evidence that he was elsewhere at the material time. see ***Bediako vs. The State*** **[1963] 1 GLR 48, SC, at 50**. Consequently, a report was filed by the Police on 18th August 2023, in respect of the said Alibi. The accused named two (2) witnesses: Prince Ofori (the Accused's friend) and his Grandmother.

[45] According to the Report, the accused person's grandmother told the Police that the accused had rented a room at Boadi but only visited her at Ayeduase occasionally.

[46] She indicated that she did not know the nature of the work the accused was involved in. Furthermore, she stated that in December 2022, she had not seen the accused

but learnt of his arrest in June 2023. This clearly shows that his grandmother, the witness, had denied ever being with him on the night of the incident.

[47] The second witness, however, could not be traced. When the accused was asked to assist the police further in contacting the second witness, the accused indicated that he had played football with him that day, which ended at 3 pm. He claimed that he did not know where the witness lived. As a result, the Court ruled that the alibi had failed. The logical question to ask is, *"Then, where was the accused on the night of the incident"?*

[48] At the end of the prosecution's case, the accused person was invited to open his defence, as the Court had concluded that a *prima facie* case had been made against him by the Prosecution.

This position is statutorily provided for under section 174 of the Criminal Procedure Act, 1960, Act 30, as follows:

"At the close of the evidence in support of the charge, if it appears to the court that a case is made against the accused sufficiently to require him to make a defence, the court shall call upon him to enter into and shall remind him of the charge and inform he that, if he so desires, he may give evidence himself, or make a statement…".

[49] In opening his defence, the accused opted to testify from the Witness Box. He denied all charges against him and further testified that he was innocent of the charges, claiming he knew nothing about the case. He further claimed that he had been wrongly accused. The accused denied knowing the complainant and maintained that he had never met her.

[50] In his explanation, the accused asserted that the Police arrested him in another case, and it was then that he met the complainant for the first time. He narrated that the investigator re-arrested him from the Appiadu Police Station, and was made to join other cellmates at the KNUST Police Station.

[51] There, an identification parade was conducted, and the investigator asked the complainant to identify the person who had stolen her phone. According to the accused, the complainant answered that it was none of them, including him.

[52] After that, per his account, the complainant was asked to have a second look at the paraded suspects, and she intimated that the one who robbed her of her phone was not one of them.

[53] The accused reported that, for the third time in a row, he was instructed to face a certain direction, which he did, and the complainant was told to observe him carefully. According to the accused, the complainant then stated that he was not the culprit. Nonetheless, the police requested the complainant to look at him once again.

[54] The accused maintained that he was asked to turn to face the opposite side, which was to his right. Then, the complainant said that he, the accused, was the one.

[55] In disbelief, the accused said that he shook his head at the complainant and retorted that he did not know her. The accused, in concluding his testimony, said as follows:

"I am pleading with the Court that I do not know the complainant nor have I stolen her phone. That is all I have to say".

[56] I shall now assess each of the offences that the accused person has been charged with, and what the Prosecution was required to prove against him, and whether, on the evidence, the charges can be substantiated in the light of the evidence before this court. I shall also evaluate the defence put up by the accused person and ascertain if it is reasonable or even reasonably probable, in which case the Prosecution would have failed in their duty.

ix. <u>Assault</u>

[57] Taking into account all the evidence presented to the court at the conclusion of the trial, the only question for determination is whether the prosecution has succeeded in proving the guilt of the accused beyond reasonable doubt.

[58] I will now consider the charge of assault against the accused person in count 1. The offence of assault was created under section 84 of the Criminal and Other Offences Act, 1960 (Act 29), which states:

"Whoever unlawfully assaults any person is guilty of a misdemeanour".

However, Section 85 of Act 29 classifies the kinds of assault, while Sections 86, 87, and 88 of the same Act 29 define them. Section 85 states:

"Assault includes (a) assault and battery; (b) assault without actual battery; and (c) imprisonment".

[59] The Prosecution's case was that the accused person slapped PW1, Akua Frimpomaa. PW2 corroborated PW1's testimony that she witnessed the accused person slap PW1 in the face. Out of fright, she ran to call a male friend, Isaac, for help. In my view, the type of assault in this case constitutes assault and battery.

Section 86 (1) of Act 29 defines assault and battery. It states:

"A person makes an assault and battery upon another person, if without the other person's consent, and with the intention of causing harm, pain, or fear, or annoyance to the other person, or of exciting him to anger, he forcibly touches the other person, or causes any person, animal, or matter to forcibly touch him".

[60] To sustain a conviction for assault and battery against the accused, the Prosecution must prove the following elements beyond reasonable doubt:

i. That the accused forcibly touched PW1, Akua Frimpomaa.

ii. That PW1 did not consent to it.

iii. That the touch or assault was intentional.

iv. That the accused had an intention of causing harm, pain, fear or annoyance to PW1 or exciting her to anger.

As explained by Lane LCJ in the case of ***Faulkner v. Tolbot (1981) 3 All ER 440 CA***,

"An assault is an intentional touching of another person without the consent of that person and without lawful excuse. It need not necessarily be hostile, or rude, or aggressive, as some of the cases seem to indicate".

[61] To begin with, ***did the accused person forcibly touch PW1, Akua Frimpomaa***?

It was the case of the Prosecution that the accused assaulted PW1. To prove its case, the Prosecution called four witnesses in support. The first witness (PW1), Frimpomaa Akua, testified that on the 7th December 2022, at about 9:30 p.m., while on her way home with her younger sister, Winifred Nyarko (PW2), around the Light Industrial area, Boadi, they met a man called Isaac who asked if they knew the accused person walking ahead. When they told Isaac that they did not know the accused, he warned them to be careful. They were suddenly approached by the accused, who demanded to know what PW1 told Isaac about him. Without provocation, the accused slapped PW1 when, in response to his question, PW1 said she just greeted Isaac. As PW1 stated, due to the slap, she became frightened and tried to retreat, but the accused advanced towards her and seized her hand.

[62] In corroborating PW1's evidence, PW2 testified that when they had almost reached the gate of their house, the accused approached and demanded to know the discussion they had with Isaac earlier. Then, PW1 asked the accused if he had heard them

discuss him, to which he uttered, *"That is why we always kill you people,"* and that led to an exchange of words between PW1 and the accused. Out of nowhere, the accused slapped PW1 in the face in the presence of PW2, and out of fright, she (PW2) took to her heels to call their friend Isaac for help.

[63] As stated above, in paragraph 11 of her evidence-in-chief, PW1 indicated that the accused, ***WITHOUT PROVOCATION***, slapped her, depicting an element of surprise. It is evident from her testimony that she did not anticipate a slap and could not have consented to it. The slap caught PW1 completely off-guard.

[64] One may argue that the identity of the accused could have been mistaken, given the possibility of poor visibility, considering the time the incident is said to have occurred. From the evidence on record, the incident occurred at night, around 9 p.m., which raises issues regarding visibility.

In the case of ***Razak & Yamoah vs The Republic, [2012] 2 SCGLR 752***, the Court held that:

"In every criminal trial, it is not only necessary for the prosecution to prove the commission of the crime, but also to lead evidence to identify the accused as the person(s) who committed it. That was of a very crucial importance for a proven case of mistaken identity is a good ground for reversing a conviction for a crime on appeal".

The Court further held as follows:

"A judge is to guide himself by considering factors such as the period of time over which the witness saw or observed the accused (appellants in this appeal), the conditions in which the observation was made, whether or not the area or vicinity was lit to make the observation possible, the distance between the witnesses and the appellants, or whether or not the description by the prosecution witnesses agreed with that of the appellant(s)".

[65] Identification may take various forms. In 'Phipson on Evidence' (10th ed.), p 170, paragraph 1381, it is stated:

"When a party's identity with an ascertained person is in issue, it may be proved or disproved not only by direct testimony, or opinion evidence, but presumptively by similarity or dissimilarity of personal characteristics: e.g. age, height, size, hair, complexion, voice, hand-writing, manner, dress, distinctive marks, faculties, or peculiarities including blood group, as well as of residence, occupation, family relationship, education, travel, religion, knowledge of particular people, places, or facts, and other details of personal history".

[66] In her testimony, PW1 narrated that while she and PW2 were walking home, they reached a dark section of the road. Here, it is reasonable to assume that this part of the road was unlit. However, she (PW1) suggested that they should stand ***'where the light was'*** so she (PW1) could call her brother Isaac to escort them home due to the suspicious behaviour of the accused.

In paragraph 9 of her evidence-in-chief, PW1 stated as follows:

"I saw the accused person coming back towards us and started following us again. ***By then, we were heading to the darkness side, so I told my sister for us to stand where the light was*** *so that I called my brother Isaac to come and take us home because we were afraid seeing the way the accused was behaving".*

It was at that point that, according to PW1, the accused approached them and specifically questioned her (PW1) about what she had previously discussed with the said Isaac. This shows that the accused approached PW1 and PW2 in a well-lit area. Therefore, the issue of poor visibility will not arise in this case.

[67] Furthermore, regarding the identity of PW1's attacker, in paragraph 16 of PW1's evidence-in-chief, she stated that immediately after the attack, people gathered at the scene. When she described her attacker and showed his T-shirt, the crowd also mentioned Lasana as the name of the suspected attacker, who lived in Ayeduase but was often in Boadi. She stated as follows:

"…People came around and when I described him and showed the accused's shirt to them, they mentioned his name, 'Lasana,' who stays at Ayeduase but comes to Boadi often".

Also, during cross-examination of the accused, he disclosed as follows:

"Q: You will agree with me that Boadi and Ayeduase are in close proximity of the other?

A: No.

Q: You will agree with me since you have stayed in both communities in your lifetime, many people know you?

A: Yes. Many people know me in those communities, but I am known more in Ayeduase than Boadi".

[68] Interestingly, the accused claimed he knew other people in Boadi who resembled him and others with the same physique as himself. To say he knows people who look like him and have similar builds suggests he is familiar with the area and is also well-known there. It is therefore not strange that the people who gathered at the crime scene in Boadi, upon seeing the T-shirt, were able to identify the attacker as Lasana. In my opinion, they were certain about who and what they were referring to, thereby excluding the possibility of mistaken identity. During cross-examination, the accused responded as follows:

"Q: When you were described by PW1 to PW4, he was able to identify you to PW1, I put it to you.

A: That is not true. It was PW4 who mentioned my name to PW1. I know so many people at Boadi who are of the same physique as mine.

Q: You will stand by your assertion that you have lookalikes in that vicinity. Is that correct?

A: Yes. I have, also, people with the same physique as mine".

Moreover, if PW1 was specifically singled out among the many lookalikes and identified the accused as her attacker, it indicates that PW1 genuinely saw the accused on that crucial day. Therefore, the accused person's claims that he has lookalikes and individuals

of the same physique as himself fall into the category of '*fanciful possibilities*' and an attempt to evade accountability.

[69] Moving on, PW4 testified that PW1 approached him sometime in December 2022, narrated her ordeal, showed him a T-shirt, and described the attacker. As a result, he (PW4) was able to identify the attacker as Lasana. He narrated in paragraphs 6 and 7 as follows:

"Paragraph 6

PW1 told us that he was robbed of her mobile phone by a certain guy who was wearing that shirt.

Paragraph 7

After she had described the guy, I got to know it was Lasana, who is now the accused person, because I have been seeing him wearing that shirt at Boadi, committing crimes at the area. He even came out from prison not quite long".

From the evidence above, it is logical to conclude that PW1 had already heard the name 'Lasana' before approaching PW4. PW4 merely confirmed the name. It is also noteworthy that throughout the entire trial, the accused did not deny being called Lasana on any occasion.

[70] When the accused, during cross-examination, asked PW1 to describe the clothes she saw him wearing on the day of the incident, she vividly described the following:

"Q. I want you to describe the clothes and shoes I wore on that day.

A. The shirt you wore is just like what you are currently wearing, but it was red and yellow in colour. You wore crazy jeans shorts to the knee level, and the belt you wore was the woven type, and you wore laced sneakers".

[71] Moving on to PW2, when the accused asked her the same question about how he was dressed on that fateful day, she responded as follows:

"Q: How was I dressed on the day of the incident?

A: You were in a yellow and red shirt. You wore crazy jeans and laced shoes".

[72] Still, regarding the issue of the accused person's identity, PW4 maintained that he had seen the accused wearing that particular T-shirt in Boadi on several occasions. The following ensued during cross-examination:

"Q: You indicated that you had been seeing me in the T-shirt. Can you tell the Court what places you have seen me in the said T-shirt?

A: I have seen you at the Boadi Station, where the bus stop is. I usually see you at the Joyak Pub in the Boadi area. I have seen you in the T-shirt in front of our hotel, Hotel Djays at Boadi".

In my opinion, the Prosecution has adduced sufficient evidence to prove that the accused forcibly slapped PW1's face and that she did not consent to that slap.

[73] Next, ***was the touch or assault intentional?***

Since it has been established that the accused slapped PW1 without her consent, it is important to consider whether the assault was intentional. According to Black's Law Dictionary, 2nd Edition, intentional means a thing done with reason and purpose. Something that is done purposefully or for a reason is something that is not done accidentally.

[74] PW1, in paragraphs 10-12 of her evidence-in-chief, stated that the accused demanded to know what she had discussed with Isaac early on. After her response, to her surprise and without provocation, the accused slapped her face. According to her, the accused threatened her by saying, "If I want him to kill me, he will kill me". Out of fear, she tried to retreat, but the accused advanced towards her and held her hand. PW1

recounted that during the struggle with the accused on the ground over her Tecno Camon 17 mobile phone, the accused repeatedly punched her face, which resulted in a nosebleed.

[75] Clearly, the slap was intentional, as the accused did not inflict it on PW1 in self-defence, nor is it on record that PW1 consented to being slapped. Moreover, the slap was to cause fear since, after the incident, the accused threatened PW1 as follows:

"If I want him to kill me, he will kill me".

[76] In paragraph 12 of PW1's testimony, she explicitly stated that following the threat, she became frightened and attempted to move away from the accused, but he grabbed her hand. Clearly, any physical contact — whether the slap causing her pain, the punches to her face causing pain and injury (Exhibit "A"), or the accused grabbing her hand — triggered fear in her.

[77] I am convinced that the Prosecution has sufficiently proven the offence of assault and battery against the accused beyond reasonable doubt.

x. <u>ROBBERY</u>

[78] The next count to be dealt with is Robbery. Under our laws, the ingredients of this offence can be found in section 150 of Act 29 as follows:

Robbery is defined by Section 150 of Act 29 as;

"A person who steals a thing commits robbery

a. *if, in and for the purpose of stealing the thing, that person uses force or causes harm to any other person, or*
b. *if that person uses a threat or criminal assault or harm or harm to another person with the intent to prevent or overcome the resistance of the other person to the stealing of the thing".*

[79] Thus, Robbery is basically stealing, and the primary intention of the accused is to dishonestly appropriate something from another person. To prove the offence of stealing, there must be evidence that:

a. *The accused is not the owner of the thing appropriated;*
b. *The accused does not have a claim to the property stolen;*
c. *There was lack of consent from the owner as to the thing appropriated by the accused person.*

[80] The other part of the offence of robbery is that the accused must have used **force** or **harm** or **threat of criminal assault** with intent to overcome the resistance of that person to the stealing of the thing.

Here, the prosecution in a charge of robbery must prove that:

a. *The accused has stolen something from the victim of the robbery, of which he is not the owner;*

b. For the purpose of stealing, the accused person <u>used force</u> or caused harm to any person;

c. The force or the threat of criminal assault or harm used must be with the intent to prevent or overcome the resistance of any person to the stealing of the thing;

d. That this fear of violence must either be of personal violence to the person robbed or to any member of his household or family in a restrictive sense;

e. The thing stolen must be in the presence of the person threatened.

[81] In applying the law on robbery to the present case, PW1 testified that on 7th December 2022, between 9 p.m. and 9:30 p.m., while returning home with her younger sister Winifred Nyarko around the Light Industrial Area, Boadi, she was attacked by the

accused person, who slapped her, threatened her with death, and snatched her mobile phone. A fight broke out between them during which the accused hit her face repeatedly, resulting in a nosebleed. To corroborate her account, there is a medical report on record as Exhibit "A".

[82] Before delving into the matter, PW1 identified the accused as the person who attacked her on that fateful day, and this Court has already addressed the issue of the identification of the accused thoroughly.

[83] It is PW1's further case that, during the scuffle with the accused, she held onto his T-shirt, which he then took off and left behind. Afterwards, the accused escaped into the surrounding bush.

[84] Before the accused snatched the mobile phone of PW1, he slapped and beat her. Thus, she stated in paragraph 11 of her evidence-in-chief as follows:

"I was telling him that it was just greetings, but to my surprise and without any provocation, the accused gave me a slap and that he heard all what I discussed with my brother. He threatened me too with "if I want him to kill me, he will kill me".

[85] Also, in paragraph 12 of her evidence-in-chief, she narrated that:

"I became afraid and started moving back but accused was still coming towards me and held my hand. My sister in an attempt to run away, he ordered her not to move or he will kill her".

[86] She continued in paragraph 13 of her evidence as follows:

"Accused forcibly took out my Tecno Camon 17 phone valued GHS 950.00. I also held his shirt to leave my phone, but he started beating me severely. By then, my sister had run away".

[87] PW1 described how the accused assaulted her and stated that:

"Through the struggle, we all fell on the ground and he continued hitting my face to leave his shirt but I refused, so he removed his shirt and left same on my hands and took to his heels".

[88] The medical report stated that PW1 reported an assault, and upon examination, the Medical Officer/Doctor concluded that she had a laceration to the buccal mucosa. The buccal mucosa is part of the oral cavity, which includes the inside of the cheeks, lips, tongue, gums, and palate. This confirms that PW1 was indeed struck in the face during the scuffle with the accused.

[89] In corroborating PW1's account, PW2 mentioned that she was with PW1 when the incident occurred. In paragraph 11 of her evidence-in-chief, she said as follows:

"Akua Frimpomaa asked him if he heard us discussing him, accused uttered a statement to wit "That is why we always kill you people" and that brought exchange of words between my sister and the accused person".

[90] According to PW2, the accused, after the threat, the following ensued:

"Accused slapped PW1 in the face whilst I was standing there, I got scared and took to my heels to call our male friend who we met earlier, that is Isaac our friend".

[91] Additionally, PW2 recounted that when she returned to PW1 later, she found PW1 with the T-shirt, and PW1 indicated that the accused had left it behind.

"…I saw PW1 coming with an attire and she told us that the accused robbed her of her TECNO Camon 17 mobile phone and took to his heels, but she was able to get hold of his attire since he left it behind with her".

[92] A careful examination of the evidence on record indicates that PW4 did not personally witness the robbery, but also aided PW1 in identifying and searching for the

accused. Some may question whether a personal vendetta against the accused drives PW4's testimony. In my opinion, that is unlikely. My conclusion rests on the following considerations:

a. PW4 previously made a report against the accused in another matter and appeared before the Asokwa Court. However, the case was struck out because PW4, who was the complainant in that case, did not follow it up. He admitted that he did not pursue the matter because he was schooling at the time. I believe PW4 had the chance then to settle a score with the accused, but he chose to prioritise his education over seeking justice.

b. From the evidence on record, PW4 identified the accused as the person he suspected of being the perpetrator after PW1 described the accused and showed him a T-shirt. This indicates that PW1 saw the person who attacked her. The only information PW4 provided was the name of the accused, who matched that description. Even with that, he only knew the pet name of the accused, which is 'Lasana'. Throughout the trial, the accused did not deny being called Lasana.

c. During the cross-examination of PW4, the accused asserted that PW4 confronted him concerning the stolen phone belonging to PW1. This assertion was vehemently refuted by PW4, who maintained that he confronted the accused regarding his own stolen phone. If the accused's claim were accurate, it follows that at that time, PW4 was aware that PW1 was actively looking for the accused. Consequently, PW4 could have disclosed the accused's whereabouts to PW1 or facilitated the accused's arrest. Therefore, I posit that the encounter pertained to an unrelated matter and did not involve the phone belonging to PW1.

d. *Moreover, when the Police re-arrested the accused from another police station where he had been arrested prior, it was PW1 who reported that the accused had been arrested and held in that police station.*

[93] The evidence showed that PW1 described the attire of the accused, who was not masked, in succinct detail. In any case, according to the witness, the area where the attack

happened was well-lit. What difficulty would there be for an adult of sound mind to meet a person without a mask at "stand where the light was" section of the road, who was wearing knee-length "crazy" jeans shorts, a red and yellow T-shirt, a woven belt, and laced sneakers, to be able to give a vivid description of the person's attire at the material time and to identify that person later? Was it also a mere coincidence that when the crowd gathered at the scene of the crime and was shown the T-shirt, they were able to identify it as belonging to Lasana? Moreover, on a separate occasion, PW4, when shown the same T-shirt and given the description of the accused, also identified the attacker as Lasana.

[94] During his testimony, the accused stated that PW1 did not correctly identify him at the identification parade. He explained how PW1 struggled to recognise him and ultimately identified him by his back. The following occurred during cross-examination of the accused:

"Q: Will you agree with me that it was the complainant who pointed you out to the police during the identification parade and no other person?

A: Yes. She was the one who pointed at me, but she pointed at my back and not my face."

[95] Interestingly, the accused did not cross-examine PW1 and PW3 (the investigator) over the crucial issue of his identification during the identification parade, especially when PW3 stated in paragraph 8 that the complainant had identified the accused to her. *"Complainant came to the station and identified the accused person to me as the one who assaulted her and also robbed her of her said mobile phone".*

In the instant case, the accused only sought to challenge his identification at the identification parade during his testimony, where, in my opinion, he failed to raise a doubt.

[96] To conclude on count two, i.e., Robbery contrary to Section 149 of The Criminal Offences Act, 1960 (Act 29), I find that the evidence led against the accused meets the

required standard to prove the second count against him beyond reasonable doubt. It is evident that the offences with which the accused person has been charged have been well proven against him beyond reasonable doubt. In my respectful opinion, the evidence of the defence of the accused is deplorably weak. As a result, he has been unable to discharge the burden of raising a reasonable doubt as far as his defence is concerned. Given these circumstances, I find the accused person guilty on both counts. The accused is therefore duly convicted on all the counts preferred against him.

xi. <u>Pre-Sentence Hearing</u>

[97] In mitigation, the convict pleaded with the Court to show him mercy while still recognising that the Judge was performing her duty. He further appealed to the Court that, in punishing him, mercy should be extended because he had nobody. According to him, since he was arrested and brought to Court, no one had appeared in his support because he had nobody in his life. He urged the court to consider his circumstances and show him mercy. He revealed that he lived with his grandmother and was the breadwinner of the household.

[98] The Prosecution, on the other hand, submitted that the act of robbery was premeditated and that the convict, at the time of the crime, had surveyed the area and was satisfied that it was safe to strike. According to the Prosecution, the crime occurred around 9 p.m., when the world was preparing to go to sleep. The Prosecution disclosed that even before the victim was robbed, she had been assaulted and had not recovered from the trauma, which had affected her emotionally, physically, mentally, and psychologically.

[99] The Prosecution drew the Court's attention to the fact that the incidence of robbery was on the rise within the jurisdiction of this Court. The Prosecution requested that the

accused be sentenced to twenty years' imprisonment, asserting that, as a breadwinner, he should have pursued a legitimate trade rather than robbery. They further urged that the punishment be severe to act as a deterrent, initially to the accused and subsequently to others inclined to commit similar offences.

[100] The Prosecution stated that the convict, known to the Court, was sentenced to ten (10) years' imprisonment for stealing. However, on appeal, the sentence was reduced to two (2) years.

xii. <u>Sentence</u>

[101] In ***Kwashie vs. The Republic (1971) 1 GLR 488***, the Court, in dealing with the sentencing power of the Court, had this to say:

"In determining the length of sentence, the factors which the trial judge is entitled to consider are: (1) the intrinsic seriousness of the offence; (2) the degree of revulsion felt by law-abiding citizens of the society for the particular crime; (3) the premeditation with which the criminal plan was executed; (4) the prevalence of the crime within the particular locality where the offence took place; or in the country generally; (5) the sudden increase in the incidence of the particular crime; and (6) mitigating or aggravating circumstances such as extreme youth, good character and the violent manner in which the offence was committed".

[102] Considering also the principles on sentencing enunciated in the case of ***Kwashie v. The Republic (1971) 1 GLR 488*** *supra,* it is widely recognised that robbery constitutes a significant social nuisance. Perpetrators assault innocent individuals mercilessly, inflict injuries, and cause profound life disruptions. Such victims often bear emotional and physical scars and may lack access to therapeutic resources for recovery, particularly in our part of the world. Certainly, the degree of revulsion felt by law-abiding citizens at the

mention of robbery is such that there appears to be complete unanimity that robbery is a canker that must be eliminated from our society. There is also no doubt that the accused actually planned and swiftly executed his assault and robbery agenda successfully. The ease with which the robbery was executed gives the impression that the accused must have been an expert in criminal conduct, and rightly so; the accused testified that, *"the one whose item is stolen, I do not know her. I advised myself after being released from prison that I would not end up in prison again.*

[103] It is imperative to safeguard society by isolating and keeping away persons such as the accused herein for a considerable length of time. The primary obligation of any government is to ensure that citizens perform their duties in an environment of peace, tranquility, and safety. The state organs, constitutionally entrusted with maintaining law and order, bear the responsibility to enforce and uphold compliance. This sentence also aims to deter individuals who have a similar propensity for committing these crimes.

[104] I must state that the convict underwent a full trial with the Prosecution and showed no remorse for his actions at any point. However, in his defence, he conducted himself well throughout the trial and was very respectful. In pronouncing this sentence, I have taken cognisance of the circumstances of the convict, who is a relatively young man. Therefore, I will be lenient, even though an enhanced sentence is mandated for repeat offenders as provided for under Section 300 of the Criminal and Other Offences (Procedure) Act, 1960 (Act 30)

[105] Article 14 of the 1992 Constitution deals with the Protection of Personal Liberty.

Article 14 (6) reads:

"Where a person is convicted and sentenced to a term of imprisonment for an offence, any period he has spent in lawful custody in respect of that offence before the completion of his trial shall be taken into account in imposing the term of imprisonment".

[106] In ***Bosso v. The Republic [2009], SCGLR 420***, the Supreme Court emphasised the importance of adhering to this strict constitutional requirement, which must be reflected in the record. In expressing their opinion on how to determine whether a trial court took into account the mandatory requirement of Article 14 (6), the Court speaking through Georgina Wood CJ stated:

"Admittedly, the more explicitly the court expresses the position that it has taken into account the said period, the better it is for everyone, as it places the question beyond every controversy and leaves no room for doubt. Nonetheless, we think that any reference to the period spent in custody before the conclusion of the trial in a manner that suggests that it weighed on the judge's mind before deciding on the sentence should suffice."

The accused has been in prison custody on remand for two (2) years, one (1) month, and two (2) days, and this period has been taken into account in determining his sentence.

xiii. <u>Kwadwo Fordjour @ Lasana</u>

[107] Having examined the Ghana Sentencing Guidelines, the accused is sentenced to a fine of 200 penalty units, or in default, to serve a prison term of 12 months on Count 1. On Count 2, the accused is sentenced to 10 years' imprisonment with hard labour. The sentences are to run concurrently.

Restitution order: The accused is to purchase a brand-new Tecno Camon 17 or pay the value of the phone, as specified in the charge sheet, which is GHS 950, to the complainant by August 31, 2025.

The convict is reminded of his right to appeal against this sentence and the conviction.

[108] The relevant provisions of the Criminal Procedure Code, 1960 (Act 30), governing the situation are Sections 302(a) and 303 of the said Criminal Procedure Code, 1960 (Act 30). The sections are in the following terms:

"302. With respect to cases where one act constitutes several crimes or where several acts are done in execution of one criminal purpose, the following provisions shall have effect:— (a) where a person does several acts against or in respect of one person or thing each of which acts is a crime but the whole of which acts are done in execution of the same design, and, in the opinion of the Court before which the person is tried, form one continuous transaction, the person may be punished for the whole of such acts as one crime, or for any one or several of such acts as one crime, and all the acts may be taken into consideration in awarding punishment, but he shall not be liable to separate punishments as for several crimes." "303. Notwithstanding anything in section 302 to the contrary it shall be and shall be deemed always to have been lawful for the Court to pass on any person convicted (at one or more trials) of any two or more offences a separate sentence in respect of any or every such offence so that, however, in those cases in respect of which the said section 302 imposes certain restrictions in regard to punishment, such separate sentences, if sentences of imprisonment, shall run concurrently and not consecutively, and, if sentences of fines, shall not so operate as to impose the fines cumulatively".

I hope that whilst serving his sentence, he will reflect on his life and turn over a new leaf.

ASSISTANT SUPERINTENDENT OF POLICE JONAS NEWLOVE ADJEI FOR THE REPUBLIC: PRESENT